Outside-interests register

Decision memorandum for controlled operational use

TO Anselm Tikhonov

FROM Jarek Ilechukwu | In-house Legal

PEER REVIEW Oona Coutinho | Jarek Wainwright | Sofia Bergqvist

DECISION

CONTINUE SUBJECT TO CONDITIONS

Keep the employee outside-interests register in operational use in France and Germany, subject to the governance, data-quality, access and local-validation controls in this memo. This is one conditional continuation decision, not an unconditional approval.

PROPOSED CONTROL

For each new disclosure, assign an owner and complete initial triage within 5 business days.

Proposed operating control; not a historical workbook result or a statutory deadline.

WHY THIS CALL

- The brief reports a material rise in family-interest disclosures between the 2025 and 2026 workbooks.
- Defective source data weakens the trend signal, but does not by itself justify abandoning a conflict-management process.

WHAT THE REGISTER DOES

- Records a disclosure, relevant facts, a decision rationale and any mitigation within a defined purpose.
- It cannot establish wrongdoing, a conflict, or permanent clearance.

NON-NEGOTIABLE BOUNDARY

- No blanket questioning, full-row copying into hiring or procurement files, or red-label decision.
- Use contextual review and the least intrusive mitigation that protects impartiality.

FACT FROM BRIEF	**The 2025 and 2026 workbooks contain duplicates, malformed dates, irrelevant contractors and inconsistent labels; raw workbooks are not supplied. No historical count or percentage is asserted.**
BOUNDED ASSUMPTION	**The register is intended for employee outside-interest/conflict management, not general screening. Confirm the local policy and employee-representation instruments before a material change.**

France and Germany are not interchangeable

The obligation is to operate a lawful, proportionate process; local triggers still matter.

LEGAL BOUNDARY

Neither France nor Germany is asserted here to universally require this particular register. If retained, it needs a defined purpose, lawful and proportionate handling, transparent notice, controlled access and a defensible lifecycle. A binding internal policy, employment term or valid local employee-representation instrument can add a mandatory disclosure or consultation step.

FRANCE	GERMANY
Employee information and data: Give employees clear information before collection/use: purpose, categories, access/recipients, lifecycle and rights. Keep collection necessary and proportionate to conflict management. A disclosure or follow-up is mandatory only where an applicable policy, employment term or local instrument makes it so. **Employee-representation check:** If introduction, redesign or use becomes a means of monitoring/control of activity or materially changes work organisation, HR/Employee Relations should validate whether employee representatives must be informed or consulted under the applicable local process. An individual disclosure does not itself trigger consultation. **Local action:** France HR + Employee Relations + Legal/Privacy approve the notice, purpose, fields and any change in use before rollout or material redesign.	**Employee data and purpose:** Use a defined employment/conflict purpose, necessity, transparency, security, restricted access and a documented lifecycle under applicable data-protection and employee-data rules. Check any binding policy or works agreement; do not assume the register is universally required. **Works-council check:** Determine whether a works-council agreement/Betriebsvereinbarung applies and whether the system is used or capable of monitoring conduct or performance. That may require employee-representation involvement before introduction or material change. An individual disclosure does not automatically do so. **Local action:** Germany HR + Employee Relations + Legal/Privacy record the local validation and obtain any required engagement before changing the system or expanding access.

COMMON FLOOR	**Notice + purpose | necessity + minimisation | limited access | transparent follow-up | retention/deletion review | security | rights**
TERMS	**Mandatory = law, binding policy/term, or applicable employee-representation instrument. Recommended = professional or operational baseline until adopted as binding.**

Mandatory versus recommended

Classify the obligation before asking for evidence or taking action.

CLASSIFICATION RULE	**Mandatory means a requirement from applicable law, a binding internal policy/contract, or a valid local employee-representation instrument. Recommended means a proportionate professional or operational control; it becomes mandatory only if adopted into a binding instrument.**

CATEGORY	STATUS	OPERATING RULE	BASIS / LIMIT
Employee notice, purpose and rights	**MANDATORY**	Give an understandable notice before collection/use; state why the register exists, who can access it, how long it is kept and how to raise a rights/privacy question.	Applicable data-protection transparency and purpose rules.
Relevant disclosure	**MANDATORY***	Require disclosure only to the extent a binding policy, employment term or valid local instrument requires it; otherwise use it as the recommended baseline for a stated conflict purpose.	The basis is the applicable instrument, not a universal France/Germany register mandate.
Targeted follow-up	**MANDATORY***	Ask only the facts needed to decide whether impartiality may be affected, when a risk signal or policy requires review. Do not investigate every entry by default.	Necessity/proportionality and a lawful decision process; classify the local trigger.
Mitigation for material conflict	**MANDATORY***	Before affected decision-making continues, apply a documented safeguard such as recusal, reassignment, independent review or restricted access.	Conflict policy or duty to protect impartial decisions; record the rationale.
Access and onward use	**MANDATORY**	Limit raw-register access to named register operations, Legal/Privacy and designated HR/ethics reviewers. Send managers an action instruction, not a raw row.	Purpose limitation, security and minimisation; no hiring/procurement reuse.
Retention and deletion review	**MANDATORY**	Set a purpose-linked lifecycle; review and delete/anonymise entries and supporting information when no longer needed, retaining only justified audit evidence.	Storage limitation and accountability; no invented fixed statutory period.
Employee-representation engagement	**MANDATORY WHEN TRIGGERED**	Check the France/Germany local process before a material system/use change; engage where law or a valid instrument requires it.	Trigger depends on monitoring design, work impact and local instrument; not every entry.
Data repair and risk taxonomy	**RECOMMENDED**	Deduplicate people, quarantine malformed dates, filter out-of-scope contractors, normalize labels and require human assessment.	Operational assurance; needed before trend reporting, not a filing duty.
5-business-day triage	**RECOMMENDED - PROPOSED**	Assign an owner and complete initial triage within 5 business days of each new disclosure.	Proposed service control for dependable handling; not historical or statutory.

*** CONDITIONAL** Mandatory only when the relevant local law, policy, employment term or employee-representation instrument triggers it. Data-protection principles still apply regardless.

A disclosure is not a finding

Use facts and proportionate safeguards; do not let a relationship or label decide the outcome.

DISCLOSURE	CONFLICT	CLEARANCE
Employee statement that an outside interest exists.	**Contextual assessment of influence, involvement and impact.**	**Never inferred from registration; record scope and current facts.**

1 LOW / NO CURRENT SIGNAL

- A family relationship alone; no reporting line, decision influence, financial interest or actual involvement identified.
- Record limited rationale: “no conflict identified on current facts.” Do not call it permanent clearance.
- No extra questions by default; revisit only on a defined trigger.

2 UNCERTAIN

- Facts are incomplete, a label is inconsistent, or influence/involvement is unclear.
- Ask limited, purpose-specific clarification; involve Legal/Privacy if scope or necessity is unclear.
- Keep access restricted and escalate if unresolved after the proposed 5-business-day triage.

3 MATERIAL / POTENTIAL CONFLICT

- The outside interest intersects with a decision the employee can influence or information they can access.
- Pause the affected decision role; recuse/reassign or use independent review; restrict access; document the rationale.
- Escalate to country HR/Employee Relations + In-house Legal/Privacy; include the decision owner for client impact.

WHAT SUPERVISORS MUST STOP

- Do not treat a family relationship or register label as an automatic conflict, high-risk classification, misconduct finding, or clearance decision.
- Do not copy full register rows into unrelated hiring or procurement files.
- Do not use the register as a blacklist or general conduct screen.

SAFE OPERATIONAL ALTERNATIVE

- Route the case to the register owner/HR with only an employee ID, relevant category and requested decision safeguard.
- Use the separate lawful hiring/procurement process for those purposes.
- Share only the action required (for example, recusal), not names or family details. A red label is a triage flag, not a legal or misconduct finding.

PROPORTIONALITY TEST	**Collect no more than is needed to assess reporting lines, decision influence, financial interest, actual involvement, information access and workable mitigation. A family relationship is a fact requiring context, not the conclusion.**

Trend signal, not yet a validated trend

The workbooks justify remediation and careful review, not a manufactured count or percentage.

FACT FROM BRIEF

- The 2025 and 2026 workbooks are reported to show a material rise in family-interest disclosures.
- The raw workbooks, counts and percentages are not available for this memo.

ASSESSMENT

- Do not safely treat the rise as a validated trend yet. It may reflect genuine change, data defects, or both.
- No historical number is asserted here; the direction is a reported signal only.

DUPLICATE EMPLOYEES

The same person may be counted more than once. De-duplicate to one unique employee/disclosure relationship before comparing periods.

MALFORMED DATES

An invalid or ambiguous date cannot be assigned confidently to 2025 or 2026. Quarantine it; do not infer a period.

IRRELEVANT CONTRACTORS

Contractor rows are outside the employee-register trend and employee-obligation analysis unless a separate, supported scope basis exists.

INCONSISTENT LABELS

Labels do not provide a stable category or legal conclusion. Normalize definitions and have a reviewer resolve exceptions.

UNKNOWN WITHOUT RAW WORKBOOKS

Unique employees | valid period assignment | France/Germany split | repeat versus new disclosures | denominator/scope | label mapping | actual mitigation/outcome

PROPOSED RECONCILIATION RECORD

- Read-only source snapshot; stable unique-person key; date exception log; contractor scope decision; normalized label map; reviewer sign-off.

DECISION IMPLICATION

- Treat the rise as a review trigger, not proof of increasing conflict. Continue governed operation; do not use the unvalidated rise to justify blanket questioning or wider circulation.

Accountable action and client assurance

Each condition has an owner, a trigger, an evidence trail and an escalation route.

ACTION	OWNER	PROPOSED TIMING / TRIGGER	EVIDENCE LEFT	ESCALATE WHEN
Repair the 2025/2026 comparison: preserve read-only source, deduplicate, quarantine malformed dates, exclude irrelevant contractors and normalize labels.	**Register owner + HR data steward**	Before any trend is reported or client assurance relies on it	Versioned reconciliation log; exception list; reviewer sign-off.	Unresolved scope/date ambiguity -> In-house Legal + Privacy.
Intake and triage: assign an owner; classify low/uncertain/material from facts, not source label.	**Register owner + HR/ethics reviewer**	**PROPOSED: initial triage within 5 business days of each new disclosure**	Case ID; minimal facts; rationale; status; next review trigger.	Uncertain after triage or material signal -> country HR/Employee Relations + Legal/Privacy.
Apply mitigation where needed: recusal, reassignment, independent review or access restriction.	**Decision owner + HR + Legal**	Before affected decision continues	Mitigation decision and scope; notified roles; access change.	Unresolved material conflict or client impact -> Anselm + Jarek.
Validate France/Germany notice, purpose, access, retention and employee-representation trigger.	**France/Germany HR + Employee Relations + Legal/Privacy**	Before material redesign, new use or employee communication	Country validation note; approved notice; policy/works-instrument check; consultation record where applicable.	Local trigger or instrument unclear -> local ER + Legal; keep use within the existing purpose pending validation.
Lock down use: named access, export log, no copies into hiring/procurement, manager receives outcome/action only.	**IT/Security + Register owner + HR leadership**	Before next export and at each access change	Access matrix; access log; manager briefing acknowledgement.	Unauthorized copy/access -> Security + Legal/Privacy; remove copy and record incident.
Correct the Brindlemere assurance and use the approved external wording below.	**Account lead + In-house Legal/Privacy**	Before next response to Brindlemere Bureau	Approved wording; send record; no employee-level disclosure.	Request for raw data, guaranteed clearance or no questions -> Legal; decline and qualify.

CORRECTION TO PRIOR 48-HOUR ASSURANCE

Reframe the earlier informal promise as a process clarification, not an attribution of fault: do not promise that a disclosure will receive no further questions or be cleared within 48 hours. The proposed internal control remains initial triage within 5 business days.

EXTERNAL WORDING TO USE

“Our register supports a purpose-limited conflict review. We acknowledge disclosures promptly, and where facts require clarification we may ask limited, relevant questions and apply proportionate safeguards. Registration is not a misconduct finding or automatic clearance; we do not share employee-level or family details.”

RECOMMENDATION STANDS

Continue the France and Germany employee outside-interests register subject to the conditions above. The 5-business-day triage control is proposed; it is not a historical workbook result or statutory deadline. With these controls, the register can support dependable, purpose-limited conflict governance without turning a disclosure into a verdict.